

as they are imposed on both.

5. Second Admonition of Terminating Sanctions: Plaintiff and her counsel are hereby notified, again, that failure to comply with this Order, including failure to appear for deposition as scheduled or failure to timely pay the sanctions imposed, may result in the imposition of terminating sanctions pursuant to Code of Civil Procedure section 2023.030, subdivision (b), and may subject Plaintiff and/or her counsel to contempt proceedings.
6. Preparation of Order: Defendant BMW of North America Inc. shall prepare and electronically file a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) court days from the date of this hearing.

19. 9:00 AM CASE NUMBER: C25-00988
CASE NAME: BRITTANY HOPPER VS. CITY OF ANTIOCH
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF ANTIOCH
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant the City of Antioch's motion for summary judgment and summary adjudication is **denied**.

Plaintiff Brittany Hopper was injured at the Antioch Water Park on May 27, 2024, when she slid down the crystal slide into the pool and her right knee hit a rock at the bottom of the pool. (FAC ¶¶ 5, 12, 13.) Plaintiff brought one cause of action for dangerous condition of public property.

Antioch moves for summary judgment or in the alternative, summary adjudication as to the following issues: (1) there is no dangerous condition, (2) the City did not have actual or constructive notice and (3) no causation. Although Antioch is seeking summary adjudication in the alternative, if the Court grants summary adjudication on any one of these issues it would result in granting summary judgment. Thus, the analysis of the three summary adjudication issues is the same as the one for summary judgment.

Facts

Defendant's motion is based on the deposition of Plaintiff and the declaration of Bree Pires, the City's Recreation Supervisor from January 2021 to 2026.

The undisputed facts show that prior to the incident, Plaintiff had ridden on the crystal water slide about 10 to 20 times and never experienced any issues. (Undisputed Facts 1-3.) Plaintiff was unaware of anyone being injured on the slide and had permitted her daughter to use the slide, thinking it was safe. (Undisputed Facts 4-6.) Plaintiff is not aware of anyone employed by the water park being on notice of any objects in the pool before the incident. (Undisputed Fact 25.)

On May 27, 2024, Plaintiff arrived at the water park and went directly to the slide. (Undisputed Fact 7.) Plaintiff had been at the park for no more than 15 minutes. (Undisputed Fact 8.) Plaintiff exited the slide and her knees automatically hit the ground. (Undisputed Fact 9.) Plaintiff went straight down and landed in the splash pool differently than she had on prior rides on the slide. (Undisputed Fact 11.) She does not know why she entered the pool differently that day. (Undisputed Fact 13.) Plaintiff had never landed in the splash pool in that manner before. (Undisputed Facts 10,

12.)

When Plaintiff landed in the pool, her right knee was the first part of her body to make contact with the bottom of the splash pool. (Undisputed Fact 14.) Plaintiff testified that her knee made contact with a rock because the contact felt like a rock. (Undisputed Fact 17.) Plaintiff never observed a rock in the splash pool. (Undisputed Fact 14.) She does not know what the object was, she does not know what it looked like, does not know the size of the object and does not know anyone who saw the object. (Undisputed Facts 16, 18, 19, 20.)

Plaintiff does not know how long the object was present in the splash pool. (Fact 22.) She does not know how the object came to be in the pool. (Undisputed Fact 23.) She did not observe any employee removing any object from the splash pool. (Undisputed Fact 24.) Plaintiff did not look for an object in the pool after the incident, did not see any object in the water and did not point out any object in the water to a lifeguard or anyone else. (Undisputed Facts 26, 27, 28.)

Plaintiff told the lifeguard that her knee came into contact with something. (Undisputed Fact 33.) Plaintiff did not tell her sister that she had contacted a rock or object at the bottom of the pool on the date of the incident. (Undisputed Fact 34.)

The following facts are based upon Pires' declaration and are objected to by Plaintiff: on the date of the incident, the pool area where the incident occurred was cleaned and vacuumed, and staff verified that there was no debris or foreign object visible at the bottom of the pool. (Fact 29, 30.) Recreation Supervisor Pires was not aware of any prior reports of similar incidents or complaints involving debris, foreign objects or hazards in the pool or slide area during her tenure with the city, starting in January 2021. (Fact 31, 32.)

Dangerous Condition

"A 'dangerous condition,' as defined in section 830, is 'a condition of property that creates a substantial . . . risk of injury when such property or adjacent property is used with due care' in a 'reasonably foreseeable' manner. ([Gov. Code] § 830, subd. (a).)" (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 147.)

Defendant argues that there is no dangerous condition here. As Defendant points out, Plaintiff never actually saw a rock and instead her testimony shows that her knee connected with an unidentified object, but no one saw the object.

Defendant presents no evidence outside of Plaintiff's declaration addressing whether there was a dangerous condition. The City did not include factually devoid discovery responses nor other testimony or declarations from City employees or third parties on what the object was. Therefore, the Court finds that Defendant has not shown that there was not a rock in the bottom of the pool. Further, the Court also finds the existence of a rock at the bottom of a splash pool could constitute a dangerous condition and therefore the City has not met its initial burden on showing the lack of a dangerous condition.

Notice

A claim for dangerous condition of public property requires actual or constructive notice or a

showing that the public entity created the condition. The allegations here do not allege that the City put the rock in the pool. Thus, in order to prevail on a motion for summary judgment, a defendant must show a lack of both actual and constructive notice.

Defendant's evidence shows no prior complaints and incidents for at least three years prior to Plaintiff's injury. (Pires dec. ¶¶6-7.) This is sufficient to show a lack of actual notice.

As to constructive notice, "[t]he primary and indispensable element of constructive notice is a showing that the obvious condition existed a sufficient period of time before the accident." (*Strongman v. County of Kern* (1967) 255 Cal.App.2d 308, 313.) A public entity can sometimes defeat constructive notice by showing that it had a reasonable inspection system (Government Code section 835.2), but the City did not make that showing here.

Defendant argues that Plaintiff testified that she does not know how long the object was there and could not identify the object. From this testimony, Defendant argues that Plaintiff has no evidence regarding the duration of the alleged condition and thus cannot establish constructive notice. Defendant did not include any factually devoid discovery responses, nor other evidence showing how much time elapsed between when the pool was cleaned and when Plaintiff was injured.

Defendant also points to evidence that City staff cleaned and vacuumed the pool and staff confirmed that there were no foreign objects in the pool before the park opened that day. Plaintiff testified that she was injured within 15 minutes of coming to the water park and although not in the separate statement, she testified that she arrived around 1:30pm. (Plaintiff depo. 12:4-7.) There is no evidence, however, as to when the pool opened that day and thus, there is no evidence on how long the pool was open before Plaintiff arrived.

The Court finds that Defendant cannot meet its burden of showing a lack of constructive notice on the evidence presented in this motion.

Causation

Defendant argues that there is a lack of causation here because Plaintiff cannot identify the object that struck her and she testified that she entered the splash pool differently than she usually did. Defendant cites no case law supporting these arguments. Further, there is no evidence that Plaintiff used the water slide incorrectly. She testified that she landed on her knee and it struck a rock and then she became injured. Defendant has not shown how this evidence is insufficient to show causation and the Court finds that Defendant has not met its initial burden on causation.

Since Defendant has not met its initial burden on dangerous condition, notice or causation the motion for summary judgment and adjudication must be denied.

Opposition

Although the Court finds that Defendant has not met its initial burden on this motion, the Court provides its analysis on Plaintiff's opposition to find a complete analysis of this motion.

In opposing this motion, Plaintiff does not include any evidence. Plaintiff also does not dispute facts 1 to 28 and 33 to 34. She disputes facts 29 to 32 by disputing the evidence based upon

evidentiary grounds. Although not in the proper form, the Court construes Plaintiff's dispute as to facts 29-32 as objections to evidence to paragraphs 4-7 of the Pires declaration.

The Court sustains the objections to paragraphs 4 and 5 as hearsay. Pires does not explain what information or records she reviewed nor how those were kept in the ordinary course of business. As such, the evidence does not meet the business records exception and without it the testimony is hearsay. The Court overrules objections to paragraphs 6 and 7 because the declarant is a recreation supervisor for the City and her lack of knowledge provides sufficient evidence to show lack of actual notice.

Plaintiff also argues that the depth of the water in the pool was too shallow. However, the dangerous condition alleged in the FAC is a rock, not a shallow pool. (FAC ¶¶13, 17.) Plaintiff cannot raise new issues in opposition that were not alleged in the complaint. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257 ("new factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them."))

Plaintiff also argues that *res ipsa loquitur* applies here. "[T]he doctrine of *res ipsa loquitur* is defined by statute as 'a presumption affecting the burden of producing evidence.' (Evid. Code, § 646, subd. (b).) The presumption arises when the evidence satisfies three conditions: " '(1) the accident must be of a kind which ordinarily does not occur in the absence of someone's negligence; (2) it must be caused by an agency or instrumentality within the exclusive control of the defendant; (3) it must not have been due to any voluntary action or contribution on the part of the plaintiff.' "[Citation.]" (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 825-826.)

However, this doctrine does not apply to prove the elements of a dangerous condition of public property. (*Id.* at 838.) In *Brown*, the Court noted that *res ipsa* might be used to show that a particular condition was dangerous and that a particular act or omission was negligent. (*Id.* at 832.) But it cannot be used to show actual or constructive notice. (*Id.* at 837.)

20. 9:00 AM CASE NUMBER: C25-01807
CASE NAME: ANTHONY MAPALO VS. ERIC MUHAMMAD
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: MAPALO, ANTHONY
TENTATIVE RULING:

Before the Court is Plaintiff Tony Mapolo ("Plaintiff")'s motion for leave to file First Amended Complaint. The motion is "conditionally opposed" by Defendant VIP Protective Services, Inc. and Defendant Eric Muhammad (collectively, "Defendants").

Plaintiff moves pursuant to Code of Civil Procedure section 473(a)(1) to convert this action from a class action and Private Attorneys General Act representative action to a single-plaintiff individual action, remove Dwayne Cash and John Halfacre as named plaintiffs, and remove the Eighth Cause of Action for Violation of the Private Attorneys General Act.

For the following reasons, Plaintiff's motion is **granted**. The First Amended Complaint is deemed filed as of September 16, 2026. Plaintiff is ordered to file a separate copy of the First Amended Complaint